

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



March 16, 2020

The Honorable William R. Froeberg
Judge of the Superior Court
County of Orange
700 Civic Center Drive West
Santa Ana, CA 92701

Re: Jose Elias Sandoval Jr.
CDCR No: G11100
Case No: 06ZF0122
Date of Sentence: March 28, 2008

Dear Honorable William R. Froeberg:

The purpose of this letter is to provide the court with the authority to resentence inmate Jose Sandoval, G11100, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

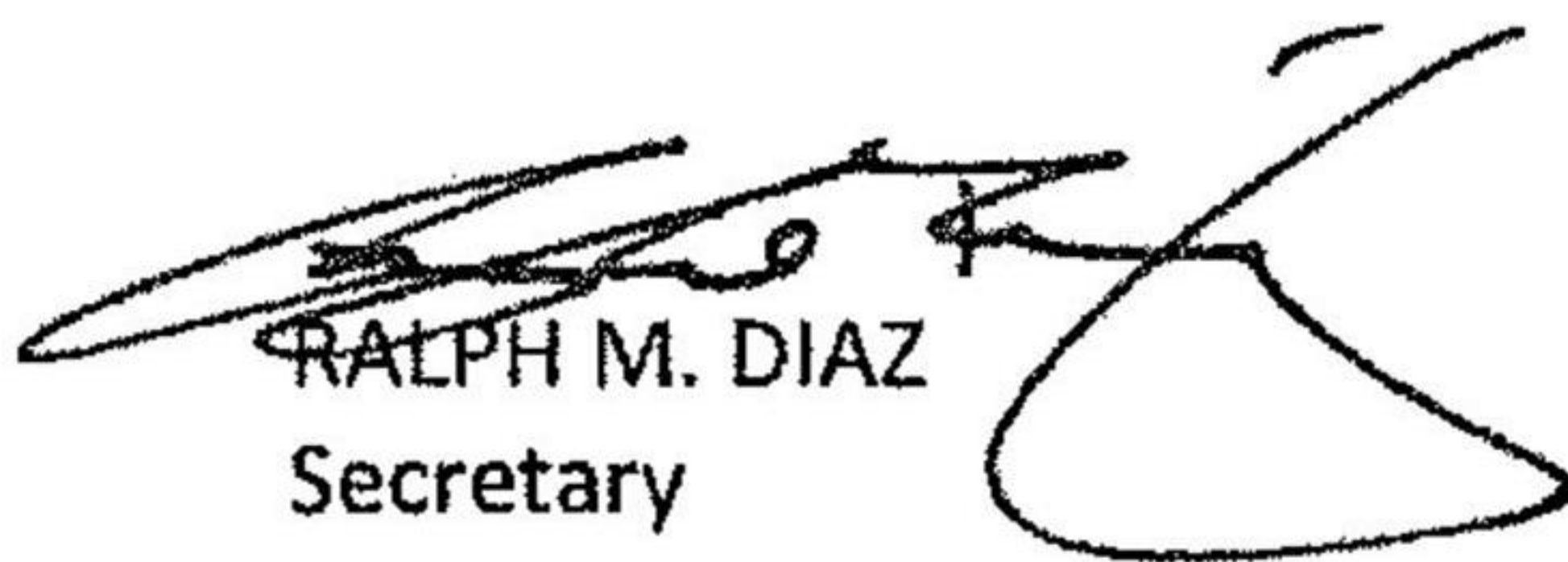
Inmate Sandoval has remained disciplinary free since being received to CDCR on April 9, 2008. Inmate Sandoval is currently assigned as an Offender Mentor Intern. Inmate Sandoval also participates in Freedom to Choose, Alcoholics Anonymous, Domestic Violence, and College (voluntary) and has received 12 Laudatory Chrono's from these group sponsors acknowledging his commitment and dedication to these Self-Awareness and Improvement Groups. Inmate Sandoval met the standards of the General Educational Development and received his High School Equivalency Certificate at Calipatria State Prison. Staff stated that

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inmate Sandoval does everything that is asked of him, has never had any problems in the building, there is nothing unusual or negative to say about him, and is a total programmer.

Having reviewed the enclosed documentation it appears that inmate Sandoval's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Kirk H. Nakamura, Presiding Judge
Orange County District Attorney's Office
Orange County Public Defender's Office